

The complaint

Mrs and Mr B complain about how Aviva Insurance Limited handled and settled a claim they made under their home insurance policy for storm damage to their roof.

What happened

Mrs and Mr B hold a policy of home insurance, which is provided by Aviva. This policy was inceptioned in early 2019 and a copy of the policy terms and schedule were made available to Mrs and Mr B at around that time.

On 27 January 2020 Mrs and Mr B said they noticed water ingress through their ceiling. They thought the source of water ingress was where their pitched roof met their flat roof. And they believed stormy weather conditions had caused four tiles to be lifted from the roof of their house.

Mrs and Mr B thought this adverse weather caused the roof damage and subsequent water ingress into their property. So, they arranged for a roofer to attend and assess the damage to their roof. Their roofer provided them with a quote of the remedial work required and stated missing roof tiles were *“as a result of heavy storms”*.

Mrs and Mr B contacted Aviva in order to make a claim under their policy for storm damage. Aviva appointed a loss adjuster, which I'll refer to as “H” in this decision, to attend Mrs and Mr B's property and determine a cause of damage.

Following H's inspection of Mrs and Mr B's roof it advised that the damage observed was not due to a one off storm event. Instead, it considered the damage to be historic and longstanding. It also commented that there was evidence of many poorly undertaken DIY repairs to different areas of the roof surface.

Given the content on H's report, Aviva repudiated Mrs and Mr B's claim. It explained that age related wear and tear and poor workmanship issues were excluded under their policy. It also didn't identify any storms at around the time Mrs and Mr B said they'd experienced water ingress.

But Mrs and Mr B disagreed with Aviva's assessment of their claim. They felt it hadn't properly considered the circumstances of what had happened. So, they complained that Aviva's decision to decline their claim was unfair.

Aviva investigated Mrs and Mr B's complaint but didn't uphold it. It maintained its decision to decline their claim as it didn't think the main cause of the damage had been a one-off storm event.

Being dissatisfied with Aviva's response to their complaint, Mrs and Mr B referred it to our service. Our investigator looked into what had happened, but they weren't satisfied there was a storm at around the time the damage had occurred. They also agreed with H's opinion on the cause of damage and they weren't persuaded the damage to Mrs and Mr B's roof had occurred due to an insured event. So, they didn't think Aviva had acted unfairly in declining

to cover their claim and they didn't recommend upholding their complaint as a result. But Mrs and Mr B disagreed and asked an ombudsman to review their complaint.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

I can see Mrs and Mr B have gone to some trouble to provide our service with some detailed submissions. It's clear they feel very strongly that their claim should be met. I want to assure them that I've read everything they've sent us. I hope they'll understand if I don't address every comment they've made in this decision. I intend to concentrate on what I consider is key to the complaint – namely whether Aviva acted reasonably in declining this claim. And I'll explain why I think it has.

There's no dispute that damage occurred to Mrs and Mr B's roof. However, there's a disagreement between the parties about the cause of the damage and correct outcome of this claim.

Mrs and Mr B have complained that Aviva didn't properly assess their claim. They believe their roof was damaged by stormy weather and high winds and they want Aviva to cover the damage to their property as a result.

Mrs and Mr B's insurance policy provides cover for damage caused by a range of perils that might happen. These are specific one-off events that are listed within an insurance policy and they cover damage caused, for example, by storm etc. Where a policyholder makes a claim, it's their responsibility to prove the damage was caused by an insured event. So here, for a claim to be accepted under the storm peril, Mrs and Mr B would have to show that any damage was the direct result of a single weather event.

I can see Mrs and Mr B have asked our investigator to consider damage that occurred in March 2020. But based on the available evidence here, I'm satisfied the relevant date of loss is 27 January 2020. I say this because this is when Mrs and Mr B informed Aviva they had noticed water ingress into their property. I'm therefore satisfied their complaint relates to the storm they say they experienced in January 2020. And for that reason, I'm going to address events leading up to that date only within this final decision.

There are three conditions that need to be met before this service would say a claim for storm damage should succeed. Those are:

1. Is there evidence that there was a storm around the date of the damage?
2. Is the damage consistent with what we would normally consider storm damage?
3. Was the storm the main cause of the damage?

I have re-assessed Mrs and Mr B's complaint and all the evidence with these three questions in mind. As our investigator explained, all three questions need to be answered affirmatively for this service to be able to recommend that a storm complaint is upheld.

In weighing up the first question, I can see that Mrs and Mr B's policy doesn't define the word 'storm'. This isn't unusual. And in that scenario this service takes the view that a storm generally involves violent winds, usually accompanied by rain, hail or snow. When looking at wind speed, we generally consider wind speeds of 47 mph or above to be consistent with a storm.

I've carefully reviewed weather records of Mrs and Mr B's locality during the week leading up to 27 January 2020 with what they told our service about the stormy weather conditions they experienced in mind. But, like our investigator, I haven't found any evidence of any storms or wind speeds recorded of 47mph or above. Instead, the wind speed recorded on 27 January 2020 was 24mph with 29mph being recorded the previous day, which was the highest wind speed recorded within a week of Mrs and Mr B noticing the water ingress.

I'm sorry to disappoint Mrs and Mr B but there isn't enough evidence to satisfy me there was a storm at around the time the roof damage occurred. And, as I'm not persuaded that a storm occurred, I don't need to go on to address questions two or three as outlined above. So, I can't uphold Mr and Mrs B's storm claim.

I've mentioned in the background to this complaint that Mrs and Mr B's policy excludes damage that is caused by age-related wear and tear or poor workmanship. This is in common with most home insurance policies because insurance is intended to cover the unforeseen – and something wearing out or requiring maintenance isn't unforeseen.

If an insurer wishes to decline a claim based on a policy exclusion it has to show that this is how the damage happened. In this case Aviva relies on H's opinion that the damage was caused by age-related wear and tear and poor workmanship.

I've carefully studied the report from H and think it clearly explains its view as to the cause of the roof damage here. It's evident H went onto the roof in order to examine its condition and determine what had caused the water ingress, which shows a thorough and proper inspection of Mrs and Mr B's roof was undertaken on Aviva's behalf.

H identified many DIY repairs to different places on the roof surface. It's said the lower epoxy resin flat roof is in poor condition and the roof coverage is cracked. Overall, it feels the condition of the roof is poor and the DIY repairs have been poorly undertaken. It's also examined online satellite photographs that have been taken of Mrs and Mr B's roof, which have shown the repairs were historic. Given the repairs that had been undertaken, I think on balance Mrs and Mr B must have been aware of the problems with their roof. I'm also persuaded that the photographs I've seen support what H has said about the condition of the roof.

It's clear Mrs and Mr B don't accept H's comments about the cause of damage. But H is a recognised organisation that regularly assesses property damage on behalf of insurers. And our service thinks it's right for an insurer to instruct companies with expertise to inspect a customer's property to assist it in determining the cause of damage.

I don't think Aviva acted unfairly in using the information H had provided in order to assess and decline Mrs and Mr B's claim on the basis that the damage to their roof had been caused by age-related wear and tear and poor workmanship. I appreciate their roofer stated the roof tiles were missing "*as a result of heavy storms*". But there's no evidence they undertook as thorough an inspection of the roof as H did.

In the overall circumstances, I'm more persuaded by the content of H's report here. I'm satisfied Aviva has shown our service reliable evidence to demonstrate that the damage to Mrs and Mr B's roof was caused by age-related wear and tear and poor workmanship.

There's no compelling evidence that the damage to Mrs and Mr B's roof was caused by a one-off storm event, which is what is covered by their policy. I think it's, most likely, that the adverse weather they experienced in January 2020 highlighted the poor condition of, and pre-existing issues with, the roof and caused it to worsen.

I know Mrs and Mr B will be disappointed with this decision; they feel very strongly about the issues raised in his complaint. But, based on the evidence I've seen, it's clear to me that their roof has been in a very poor condition for some time prior to 27 January 2020. I'm persuaded the deterioration of their roof happened over a long period of time and was caused by both age-related wear and tear and poorly undertaken repairs. It follows that I'm satisfied Aviva acted reasonably in declining Mrs and Mr B's claim. And this means it wouldn't be fair to require it to pay this claim.

My final decision

My final decision is that I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs B and Mr B to accept or reject my decision before 18 October 2020.

Julie Robertson
Ombudsman